

## 25NNCV01331 25NNCV01331

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-14

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Case Number: 25NNCV01331 Hearing Date: July 14, 2026 Dept: T

United

Wholesale Mortgage, LLC vs Blake Nelle, an individual, et al.

Motion

to Deem Admitted the First Set of Requests for Admission Propounded on Plaintiff SOS Restoration, Inc.

Moving Party: Defendant Blake Nelle

Responding Party: Plaintiff

United Wholesale Mortgage LLC

Tentative Ruling: Deny

in part, grant in part

### RULING

The Court finds that Defendant Blake Nelle ("Defendant") properly served Plaintiff United Wholesale Mortgage LLC ("Plaintiff") with a first set of requests for admission on April 23, 2026, and that Plaintiff failed to timely respond to these requests.

However, in reviewing the untimely responses that were served on Defendant before the hearing, the Court finds that these responses are in substantial compliance with Code of Civil Procedure section 2033.220. (See, e.g., *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.) Thus, the motion to deem admitted the truth of the matters specified in these requests is denied.

Although the motion is denied, Code

of Civil Procedure section 2033.280(c) mandates the imposition of sanctions on “the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” In fulfilling this mandate, the Court retains “broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300.) Accordingly, given the presence of glaring errors in the moving papers that evince a lack of diligence by defense counsel in their preparation, including citations to and discussion of inapplicable legal authority, the Court finds that a reasonable reduction of 3 hours is warranted. Thus, the request for sanctions is granted in the reduced total amount of \$560.00.

Defendant

Blake Nelle's Motion to Deem Admitted the First Set of Requests for Admission Propounded on Plaintiff United Wholesale Mortgage LLC is DENIED.

Defendant's

request for monetary sanctions is GRANTED IN PART in the reduced total amount of \$560.00 against Plaintiff. Said sanctions shall be paid to counsel for Defendant within 30 days of this order.